

properly before the court. Prior to class certification, the only plaintiff before the court is Affonso. (*Lee v. S. Cal. Univ. for Prof'l Studies* (2007) 148 Cal.App.4th 782, 786.)

TOM TRAN; ET AL. vs. STEVEN LAM; ET AL.
Case No. CU25-09364

Demurrer

TENTATIVE RULING

The demurrer shall be taken off calendar. The motion has been rendered moot by the timely filing of Plaintiffs' first amended complaint on August 4, 2026.

JORGE MORAN; ET AL. vs. CALIFORNIA AUTOMOBILE INSURANCE COMPANY
Case No. CU25-11802

JORGE MORAN; ET AL. vs. CALIFORNIA AUTOMOBILE INSURANCE COMPANY
Case No. CU25-11868

Motion to Consolidate Related Actions for All Purposes

TENTATIVE RULING

The unopposed motion to consolidate these cases for all purposes is granted. All future filings in either case are to be filed in Case No. cu25-11802, the lead case. The consolidated case is assigned to Judge Tim Kam, Dept. 7 for all purposes.

Parties are to appear for the case management conference scheduled to occur at the same time as the hearing on this consolidation motion.

CAPITAL ONE BANK; ET AL. vs. JULIETTA OWEN
Case No. FCM169564

Motion by Plaintiff to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement Against Defendant

TENTATIVE RULING

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of attachment [C.C.P. §482.070(d)], and applications for writs of possession [C.C.P. §512.030(b)].

Defendant filed no responsive pleading in this action.

The only proof of service filed here for the motion papers shows service by mail, on Defendant, at an address at which personal service of summons and complaint had been completed over six years earlier. No evidence was provided to explain how this could constitute proper service on a defendant who has never appeared in this action.

Plaintiff's motion is denied without prejudice. Should Plaintiff seek to refile their motion, Plaintiff is directed to effect service of the motion papers in the same manner as required for service of a summons and complaint.

The Court notes that Plaintiff previously filed the same motion on July 11, 2022. On July 6, 2023, the Court denied Plaintiff's motion for the same reasons.

Plaintiff is also reminded that costs must be claimed post-judgment, per CRC 3.1700.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

Meeting ID: 161 155 4664

Passcode: 818575

One tap mobile

+16692545252,,1611554664#,,,,*818575# US (San Jose)

+14154494000,,1611554664#,,,,*818575# US (US Spanish Line)

Dial by your location

+1 669 254 5252 US (San Jose)

+1 415 449 4000 US (US Spanish Line)

+1 669 216 1590 US (San Jose)

+1 551 285 1373 US (New Jersey)

+1 646 828 7666 US (New York)

+1 646 964 1167 US (US Spanish Line)

+1 833 568 8864 US Toll-free
